

Primary Source Reading 1: The Laws Speak

Optima Academy Online | Philosophy & Ethics | High School Honors (9–12) From Plato's Crito, translated by Benjamin Jowett Read before Lesson 12a: Socrates in Prison

Before you read: Crito has come before dawn with an escape plan fully arranged. Socrates could simply go. Instead he insists on reasoning the question through, and part of the way he does this is remarkable: he imagines the Laws of Athens themselves standing before him, demanding to know why he thinks he has the right to break them. As you read, notice that the Laws' argument is not about Socrates's particular case — it is about what a legal system requires in order to exist at all.

Reason, Not the Opinion of the Many

SOCRATES: Dear Crito, your zeal is invaluable, if a right one; but if wrong, the greater the zeal the greater the danger; and therefore we ought to consider whether I shall or shall not do as you say. For I am and always have been one of those natures who must be guided by reason, whatever the reason may be which upon reflection appears to me to be the best; and now that this chance has befallen me, I cannot repudiate my own words: the principles which I have hitherto honoured and revered I still honour, and unless we can at once find other and better principles, I am certain not to agree with you; no, not even if the power of the multitude could inflict many more imprisonments, confiscations, deaths, frightening us like children with hobgoblin terrors. (46b–c)

Can a State Survive If Its Judgments Have No Force?

SOCRATES: Imagine that I am about to play truant, and the laws and the government come and interrogate me: "Tell us, Socrates," they say, "what are you about? Are you not going by an act of yours to overturn us — the laws, and the whole state, as far as in you lies? Do you imagine that a state can subsist and not be overthrown, in which the decisions of law have no power, but are set aside and trampled upon by individuals?" What will be our answer, Crito, to these and the like words?

Suppose I say that the state has injured us and given an unjust sentence. "And was that our agreement with you?" the law would answer; "or were you to abide by the sentence of the state?" (50a–c)

Persuade or Obey

"Has a philosopher like you failed to discover that our country is more to be valued and higher and holier far than mother or father or any ancestor, and more to be regarded in the eyes of the gods and of men of understanding? Also to be soothed, and gently and reverently entreated when angry, even more than a father, and either to be persuaded, or if not persuaded, to be obeyed? And when we are punished by her,

whether with imprisonment or stripes, the punishment is to be endured in silence... neither may anyone yield or retreat or leave his rank, but whether in battle or in a court of law, or in any other place, he must do what his city and his country order him; or he must change their view of what is just.” (51a–b)

The Agreement of Seventy Years

“You, Socrates, are breaking the covenants and agreements which you made with us at your leisure, not in any haste or under any compulsion or deception, but after you have had seventy years to think of them, during which time you were at liberty to leave the city, if we were not to your mind, or if our covenants appeared to you to be unfair. You had your choice, and might have gone either to Lacedaemon or Crete... or to some other Hellenic or foreign state. Whereas you, above all other Athenians, seemed to be so fond of the state, or, in other words, of us, her laws — that you never stirred out of her; the halt, the blind, the maimed were not more stationary in her than you were. And now you run away and forsake your agreements.” (52c–53a)

After you read: Notice what kind of argument this is. The Laws are not claiming Socrates’s trial was fair — Socrates has already granted that it wasn’t. They are claiming something narrower and, in its way, harder to escape: that a lifetime of voluntary residence, enjoyed under the protection of the laws and never renounced, amounts to an agreement to accept the city’s legal processes, verdicts included. As you read the lesson, ask yourself what this argument would say about someone living under laws that were unjust from the start — and whether Socrates’s specific circumstances (a real right to leave, real opportunities to be heard) are doing more work in the argument than they first appear to.